

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

SANTA FE DISCOUNT CRUISE PARKING, INC., D/B/A EZ
CRUISE PARKING; LIGHTHOUSE PARKING INC; AND SYLVIA
ROBLEDO D/B/A 81ST DOLPHIN PARKING, *Complainants*

DOCKET NO. 14-06

v.

THE BOARD OF TRUSTEES OF THE GALVESTON WHARVES;
AND THE GALVESTON PORT FACILITIES CORPORATION,
Respondents.

Served: August 30, 2022

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

REMAND RECONSIDERATION SCHEDULING ORDER

On August 8, 2022, an order requiring joint status report was issued, directing Complainant 81st Dolphin and Respondent The Board of Trustees of the Galveston Wharves to confer and file by August 24, 2022, a joint status report with a proposed schedule for briefing the two remaining issues in this proceeding. The remaining issues involve the correct end-date for calculating reparations on the claim of selective enforcement of access fees and the method for calculating reparations. The order also directed the parties to discuss whether this proceeding could be settled. On August 23, 2022, the parties submitted a joint status report ("JSR"). The parties state that they engaged in settlement discussions but were unable to reach settlement.

I. Supplemental Findings of Fact and Conclusions of Law Regarding the Two Remaining Issues

In addition, the parties state that they have opposing views regarding whether proposed supplemental findings of fact and conclusions of law should be included in their remand reconsideration briefs on the two remaining issues. "Respondent believes the parties should file Proposed Supplemental Findings of Fact and Conclusions of Law based on the existing record with regard to the two remaining issues," and contends that "the prior Findings of Fact and Conclusions of Law regarding the two remaining issues were not designed to reflect the facts and findings needing to be specifically addressed on remand." JSR at 2. However, "Complainant disagrees with this position, and asserts that Proposed Findings of Fact and Conclusions of Law have already been filed by the respective parties and no additional 'Supplemental Proposed Supplemental Findings of Fact and Conclusions of Law' are necessary or otherwise warranted." JSR at 2. Complainant states that the August 8, 2022, order "identifies that '[o]nly briefing on the two issues remanded after reconsideration will be permitted'" and therefore, "Complainant

believes that only briefing with regard to the two remaining issues on remand are needed to resolve this matter.” JSR at 2-3.

The issues this proceeding currently seeks to resolve were not the foremost issues in contention when the parties filed their prior findings of fact and conclusions of law. As the Commission noted in its June 2, 2022, Order Granting in Part and Denying in Part Petition for Reconsideration (“Commission Reconsideration Order”):

[W]hile the Board is not entitled to additional discovery, the parties should have an opportunity to brief reparations questions before the ALJ and argue their respective positions based on the record. Reparations calculation issues were not at the forefront of the litigation before the Commission issued the April 2021 Order, so the parties should have an opportunity to address those issues now that they are squarely before the ALJ.

Commission Reconsideration Order at 16-17. Proposed findings of fact and conclusions of law limited solely to the two issues which are now in contention, accompanied by citations to evidence already in the record supporting them, would facilitate an efficient adjudication. The parties are therefore ordered to include proposed findings of fact and conclusions of law in their briefs addressing the two remaining issues.

The parties should submit an appendix including all evidence which is cited in the remand reconsideration briefs, including in the proposed supplemental findings of fact and conclusions of law. This evidence should already be in the record and the parties should maintain the bates numbers used when previously submitted. The parties should include a cover sheet listing the evidence included in the appendix with the name and date when it was previously submitted. Parties may cite to evidence submitted in the other parties’ appendix rather than including duplicative evidence.

Additionally, in the April 16, 2021, Order on Initial Decision on Remand (“Commission Remand Order”), the Commission stated:

The ALJ may also consider whether and how to pro-rate June 2011 and the extent to which decal fees affect the reparations calculation – while taxis and limousines did not pay per-trip or per-space access fees under the tariffs, they did pay decal fees.

Commission Remand Order at 40. The parties should also ensure that their briefs address “the extent to which decal fees affect the reparations calculation.” No additional discovery will be permitted.

II. The Parties’ Proposed Schedule

In the joint status report, the parties propose that Complainant files its brief on or before November 30, 2022; Respondent files its brief on or before January 4, 2023; and Complainant files its reply brief on or before January 30, 2023. The schedule proposed by the parties is

excessively long and would unduly prolong this already lengthy proceeding. Accordingly, the parties are hereby **ORDERED** to follow this schedule:

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| September 30, 2022 | Complainant's remand reconsideration brief with supplemental proposed findings of fact, and remand reconsideration appendix. |
| October 31, 2022 | Respondent's remand reconsideration opposition brief with responses to proposed supplemental findings of fact and proposed supplemental findings of fact, and remand reconsideration appendix. |
| November 15, 2022 | Complainant's remand reconsideration reply brief with responses to proposed supplemental findings of fact. |

The parties are reminded that a "scheduling order 'is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.'" *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, "[p]arties cannot control an agency's docket or procedures through agreement among themselves." *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

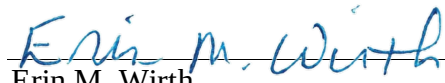
Any filing submitted without page numbers, including on exhibits, may be rejected. The parties' briefs with proposed findings of fact, responses to proposed findings of fact, and appendices shall be limited to the two remaining issues and in the following forms:

1. **[Party's] Remand Reconsideration Brief.** Each party shall file a brief meeting the requirements of Commission Rule 214, 46 C.F.R. § 502.214, with the exception that the proposed findings of fact and responses to the proposed findings of fact shall not count toward the page limit found in Rule 214(e).
2. **[Party's] Supplemental Proposed Findings of Fact.** This may be included in the brief and shall set forth proposed findings of fact in numbered paragraphs. Each paragraph shall be limited, as nearly as practicable, to a single factual proposition. Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g., a page number in the appendix. The party shall provide to each other party and to the Office of Administrative Law Judges an electronic copy of its proposed findings of fact with the hard copy of its proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
3. **[Party's] Responses to [Party's] Supplemental Proposed Findings of Fact.** This may be included in the brief and shall set forth verbatim each proposed finding of fact in another party's proposed findings of fact, then admit or deny the proposed finding. Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the

proposing party claims supports the proposed finding of fact. The opposing party shall provide to the party and to the Office of Administrative Law Judges an electronic copy of the response to [Party's] proposed findings of fact with the hard copies of the response to [Party's] proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.

4. **[Party's] Remand Reconsideration Appendix.** The evidence on which a party's proposed findings of fact or response to another party's proposed findings of fact is based shall be included in an appendix.
 - a. The cover of the appendix shall identify the party or parties that prepared the appendix;
 - b. The appendix should be in one PDF document, if practicable. The pages of the appendix must include the original bates numbers. The parties may also add additional, sequential remand bates numbers in a different location from the original bates numbers, for example CX/R 1, CX/R 2 or RX/R 1, RX/R 2, etc.;
 - c. The appendix must begin with a table of contents identifying the page at which each individual document begins, and each exhibit should be clearly identified, for example, by a cover sheet or bookmark;
 - d. The appendix table of contents must indicate the name and date of the filing in which the evidence was previously submitted;
 - e. Each party shall ensure that all documents in its appendix are legible and in English or include a verified translation as required by Rule 7 (see 502 C.F.R. § 502.7); and
 - f. The parties are instructed to cite to a document in an appendix already in the record rather than include the same document in its own appendix. For instance, if Respondent contends that a document included in Complainants' appendix rebuts the evidence Complainant claims supports a proposed finding of fact, Respondent shall cite to Complainants' appendix rather than include a second copy of the same document in its own appendix.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.


Erin M. Wirth
Chief Administrative Law Judge